

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: / 2016

-----X
BRANDON WILLIAMS, JARIN CHARLES,
TYREL LAMBERT

Plaintiffs,

-v-

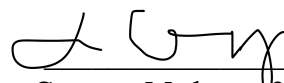
SUMMONS

SONDRA KATZ, NORMAN SCHWARTZ,
CHURCH AVENUE LLC and/or Agents, Employees of
2555 Church Avenue, Brooklyn, New York, and
THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, NYPD OFFICERS
ELIZABETH VELEZ SHEILD NO. 318932555,
NYPD OFFICERS "JOHN DOE" AND "JANE DOE"
Defendants.

-----X

YOU ARE HEREBY SUMMONED to answer the Complaint in this section and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the Complaint.

DATED: Brooklyn, New York
October 20, 2016



Stuart Meltzer & Associates, PC
By Jack Courtney 4540217
26 Court Street, 1813
Brooklyn, NY 11242
917 204 5099

Defendants' address:

Sondra Katz
305 West 52nd street, 2E

New York, New York, 10019

Norman Schwartz
305 West 52nd street, 2E
New York, New York, 10019

Church Avenue LLC
305 West 52nd street, 2E
New York, New York, 10019

City of New York Corporation Counsel
100 Church Street
New York, New York, 10007

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BRANDON WILLIAMS, JARIN CHARLES,
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Plaintiffs,

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VERIFIED COMPLAINT

SONDRA KATZ, NORMAN SCHWARTZ,
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Defendants.

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All Plaintiffs in the above captioned action, by and through their attorneys, Stuart Meltzer & Associates, PC, allege under penalty of perjury and upon information and belief:

Facts and Jurisdiction

1. This is an action to redress acts and omissions by Defendants in their unjustified, unreasonable, outrageous treatment of Plaintiffs on or about 23 September 2015 resulting in their arrest by NYPD, forced removal from a place where they were lawfully present, and detainment in jail;
2. At all times relevant, Plaintiff Charles and Plaintiff Lambert were lawful residents of the subject building, 2555 Church Avenue, Brooklyn, New York. Plaintiff Williams was their guest. All are African-American males, under age 30;

3. At all times relevant, Defendant Katz was an owner or agent of the owner of the subject building and Defendant Schwartz was an agent of the owners (collectively hereinafter “Landlord Defendants”);
4. Plaintiffs, upon entering a landing area near an interior stairwell in the subject small four-unit building, where two of the Plaintiff’s reside and the other was their guest, were unjustifiably detained, confronted, and harassed by Landlord Defendants;
5. Plaintiffs were walking to the roof deck, the hallway to which displayed a sign stating: “Rooftop Open to Residents and Guests Only;”
6. Landlord Defendants recognized the Plaintiffs --two as residents and one as their guest—and Plaintiffs reminded Defendants of this fact;
7. Landlord Defendants responded with hostile, sarcastic, imperious and abusive language about their identities, suggesting that Plaintiffs had broken into the building and were “trespassing” and would be arrested;
8. Landlord Defendants called police, falsely stating that Plaintiffs were intruders and in possession of illegal weapons and drugs;
9. NYPD officers, including Defendants Officer Elizabeth Valez and several “John Does” (hereinafter “Defendant City”) arrived at the interior of the subject building, spoke with Landlord Defendants (who repeated the aforementioned false statements);
10. Defendant City’s officers then proceeded to completely ignore statements and verbal protests of all Plaintiffs, including the statements from Plaintiff’s mother, failed to make any effort to determine the resident

status of Plaintiffs, then handcuffed them and hauled them off in a cargo van, where they were slammed onto seats, still cuffed, and were not secured by the officers with seat-belts or other safety apparatus as they sped off to the precinct;

11. All Plaintiffs were then jailed;
12. Defendant City detained, without reasonable basis or probable cause based upon rudimentary inquiry as to the status of the Plaintiffs;
13. All Plaintiffs were detained for more than 23 hours;
14. All charges against Plaintiffs were subsequently dismissed as of the filing of this action;
15. Plaintiffs were at all times natural-born citizens of the United States and legal residents of New York City, County of Kings, State of New York, two of them residents of the subject property from which they were seized and denied their freedom;
16. At all times relevant Defendants NYPD Officers Elizabeth Velez and “John Does”, were agents of City of New York and were acting within the scope of their agency;
17. Defendant City of New York has a principal place of business in Kings County;
18. Plaintiffs have complied with all conditions precedent applicable to the instant action;
19. All three men were released and all charges were subsequently dismissed;

First Cause of Action: False Arrest as to NYPD

20. Plaintiffs restate all allegations above;
21. On or about 23 September 2015 Plaintiffs were arrested, handcuffed, and taken into custody against their will on a charge of criminal trespass;
22. Defendant City's agents/officers conducted no reasonable inquiry into the validity of the statements made by Landlord Defendants at the scene or later in an effort to verify the resident status of Defendants and/or the basis for the allegations;
23. Instead of inquiring as to whether plaintiffs were in fact trespassers, defendant officers continued to handcuff, transport, detain, and jail the plaintiffs;

Second Cause of Action: Civil Rights Violation under 28 USC 1983

24. Plaintiffs restate all allegations above;
25. In engaging in the conduct described, by falsely arresting plaintiffs, the city and defendant police officers deprived plaintiffs of their civil rights pursuant to 42 U.S.C.A. § 1983. Further, as police officers employed by the City of New York, defendant police officers were acting under the color of state law of the State of New York;
26. Such deprivations were in violation of the rights secured to plaintiffs by the Fourth and Fourteenth Amendments of the United States Constitution and by 42 U.S.C.A. § 1983, and plaintiffs suffered injury.

Third Cause of Action: Negligence

27. Plaintiffs restate and re-allege all preceding facts and allegations;

28. Defendant City of New York knew or should have known that the aforesaid failure to properly train or supervise and/or the aforesaid failure to adopt proper policies, procedures or standards, and/or the failure to properly investigate and reckless disregard or gross indifference would result in the deprivation of the rights secured to plaintiffs by the Fourth and Fourteenth Amendments to the United States Constitution and by virtue of 42 U.S.C.A. § 1983;
29. Defendants had a duty to know who they were detaining by making a reasonable inquiry in good faith;
30. The City, through their agents and employees, breached their duty and Plaintiff's suffered injury;

Fourth Cause of Action: False Arrest as to Landlord Defendants

31. Plaintiff restates and re-alleges all preceding facts and allegations;
32. Under New York law, private persons may be liable for false imprisonment if he "has expressly ordered it, or, for example, if he has 'shown undue zeal', or been 'active and officious.'" *Reagan v. Morgan* 207 N.Y.S. 395, 396 (App. Div. 1925);
33. Defendants Sondra Lee Katz and Norman Schwartz individually and as agents of Church Avenue LLC or owners of the subject building, falsely intentionally and maliciously made accusatory and untrue statements to police officials about Plaintiffs thereby causing the unjustified arrest, abuse, and detention of Plaintiffs;

34. Landlord Defendants thereby caused Plaintiffs injuries which are measurable and compensable and exceed the jurisdiction of lower courts;

Fifth Cause of Action: Prima Facie Tort as to Landlord Katz

35. Plaintiffs restate and re-allege all preceding facts and allegations;
36. Landlord Defendants have acted to inflict harm on Plaintiffs without justification and caused them to be falsely arrested and jailed;
37. Knowing the Plaintiffs were not trespassers on the property, Landlord Defendants out of spite and malevolence in falsely reporting a crime to police and then repeating the falsehoods;
38. Defendant Landlords thereby violated the standards of reasonableness as observed in New York courts, causing measurable and compensable damages to the Plaintiffs;

Sixth Cause of Action: Prima Facie Fraud and Misrepresentation

39. Plaintiffs restate and re-allege all preceding facts and allegations;
40. Landlord Defendants, through prior assertions to residents of the building, and the placement of a sign on the doorway to the roof, knowingly acted to invite all “residents and guests” to visit the roof deck of the subject building. Plaintiffs had ample reason and legal justification to believe that they met such the criteria;
41. Landlord Defendants acted maliciously and intentionally to abuse and bring about the arrest of Plaintiffs;

Seventh Cause of Action: Slander and Libel

42. Plaintiffs restate and re-allege all preceding facts and allegations;

43. Landlord Defendants, made oral and written statements to police authorities falsely accusing plaintiffs of being trespassers on her property;
44. As a result of Landlord Defendants' statements, Plaintiffs have suffered reputational and related damage which led to a ridiculous spectacle of the arrest, cuffing, and transport of Plaintiffs in view of family, friends, and other individuals;
45. Plaintiffs thereby suffered measurable and compensable damages due to Defendant Landlords malicious acts;

WHEREFORE, Plaintiffs respectfully ask this Court grant judgment in their favor:

- a) Requiring Landlord Defendants to pay Plaintiffs \$150,000 in compensatory damages;
- b) Requiring Landlord Defendants to pay Plaintiffs \$50,000 in punitive damages;
- c) Requiring the City of New York to pay Plaintiffs \$150,000 in compensatory damages;
- d) Granting such other or further relief as the Court finds just.

Dated: Brooklyn, New York
5 October 2016


Stuart Meltzer & Associates, PC
By Jack Courtney 4540217
26 Court Street, 1813
Brooklyn, NY 11242
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VERIFICATION

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Defendants.

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STATE OF NEW YORK)
COUNTY OF KINGS) ss:

BRANDON WILLIAMS, duly sworn, states under penalty of perjury, and upon information and belief:

1. I am a Plaintiff in this action and as such am fully familiar with the facts and circumstances herein and heretofore;
2. I have read the foregoing Verified Complaint and find its contents to be true and accurate based upon my own recollections;
3. As to those matters stated upon information and belief I believe them to be true as well



BRANDON WILLIAMS

Sworn before me 10/2/16
Notary



JOHN E COURTNEY
Notary Public, State of New York
No. 02CO6287698
Qualified in Kings County
Commission Expires August 19, 2017

PREMIER COURT OF THE STATE OF NEW YORK
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STATE OF NEW YORK)
COUNTY OF KINGS) ss:

JARIN CHARLES, duly sworn, states under penalty of perjury, and
upon information and belief:

1. I am a Plaintiff in this action and as such am fully familiar with the facts
and circumstances herein and heretofore;
2. I have read the foregoing Verified Complaint and find its contents to be
true and accurate based upon my own recollections;
3. As to those matters stated upon information and belief I believe them to
be true as well



JARIN CHARLES

Sworn before me 10/2/16
Notary


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